

FL-26-000859 GONZALEZ VS MONTIEL

County: stanislaus

Division: Family Law

Department: 25

Hearing date: 2026-07-27

Motion: Respondent's Request for Order re Set Aside, etc.—HEARING REQUIRED. Proof of mail service on Petitioner's counsel of record at the time is on file and presumptively valid. However, Petitioner filed a Substitution of Attorney on July 22, 2026, and is now self-represented. No Responsive Declaration or other opposition has been filed and the Court wishes to inquire as to whether Petitioner has received actual notice and whether Petitioner opposes Respondent's order request before ruling on the merits. Turning to said merits, Respondent seeks to set aside the Court's Findings and Order After Hearing (FOAH) of April 28, 2026, which resulted from Petitioner's Request for Order re Child Custody and Visitation. The Court granted Petitioner's request for an Order Shortening Time (OST) and, based on Petitioner's moving papers, granted temporary emergency orders pending hearing. The matter was originally set for mediation on April 21, 2026, but was continued by the Court to April 28, 2026, due to the mediator's lack of sufficient time to hear it as set. (FOAH, 4/21/26, p. 2 of 3.) Respondent made no appearance at either the hearing as originally set, nor the continued hearing. The subject FOAH expressly states: The following custody and visitation orders are imposed by the Court based upon the combined agreement of the party and recommendation of the child custody counselor in the absence of the Mother and without prejudice. This order shall supersede all prior orders. (FOAH, 4/28/26, p. 2 of 3, emphasis added.) Respondent's order request attaches a Points and Authorities, but there is no declaration signed by Respondent herself. Counsel's representations as to the alleged facts serving as the basis for relief are merely "argument," not "evidence" upon which the Court may rely. (See, Cal. Rules of Ct., rule 5.111(b)(2) ["A declaration must be based on personal knowledge and explain how the person has acquired that knowledge"], emphasis added.) Factual declarations are compulsory per the Rules of Court and per the "mandatory" nature of the Judicial Council FL-300 form required for all order requests. (Cal. Rules of Ct., rule 5.92(b)(1); Marriage of Bardzik (2008) 165 Cal.App.4th 1291, 1297, n. 3 [declarations are supposed to reflect statements of the declarant under oath, not legal argument by counsel]; Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026) Ch. 5-D, § 5:325-327 ["Evidentiary facts in support of each requested order must be included...The supporting declarations are for factual allegations"].) Absent such evidence, the Court is inclined to deny the request. In any event, the authority cited by Respondent's counsel is inapposite: First, Family Code section 3690 et seq. only governs set aside of support orders, none of which are at issue here. Second, Family Code section 2100 et seq. applies only to judgments adjudicating support or division of property, and only after the expiration of the time for relief under Code of Civil Procedure section 473. (See, Fam. Code, § 2121(a) ["In proceedings for dissolution of marriage, for nullity of marriage, or for legal separation of the parties, the court may, on any terms that may be just, relieve a spouse from a judgment, or any part or parts thereof, adjudicating support or division of property, after the six-month time limit of Section 473 of the Code of Civil Procedure has run..."], emphasis added.) Moreover, this is an action to establish parental relations, and therefore not a proceeding within the express scope of section 2100 et seq. Third, and last, Respondent's counsel cites section 473(b) as authority but counsel did not submit an "affidavit of fault" that the subject FOAH resulted from counsel's neglect or mistake such that the so-called "mandatory" relief provisions of section 473(b) apply, nor did Respondent herself submit any affidavit attesting to facts that would establish "mistake, surprise, inadvertence or excusable neglect" sufficient to warrant relief. Even if Respondent had, the subject FOAH concerns neither a "default" nor a "dismissal," and because Petitioner's original RFO sought pendente lite relief, there is no "judgment" or even permanent custody order at issue, and any analogy to default is misplaced since that would assume the subject FOAH was not founded on the minor child's best interests, but was instead based solely on Respondent's absence. No authority is offered that 473(b) relief obtains for temporary and pendente lite orders, and the prevailing view is to the contrary. (See, e.g., In re Marriage of Capos (2026) 120 Cal.App.5th 997, 1007 [distinguishing cases granting relief under Code Civ. Proc., §§ 473(b),(d), 580, where default or default judgments were at issue because the appellant's default had not been taken]; Hogoboom & King, supra, at § 5:300.8 ["[M]ore recent cases hold that the provision for mandatory relief does not apply absent an actual default, default judgment or dismissal. This is probably the better view..."].) Indeed, all child custody matters are inherently modifiable until the age of majority and because the Court expressly noted in the subject FOAH that it was "without prejudice" due to Respondent's non-appearance, set aside is arguably unnecessary for Respondent to seek modification. In terms of section 473(b) procedure, Respondent's order request did not include a copy of the "answer or other pleading proposed to be filed" (in this case a Responsive Declaration or FL-320), absent which "the application shall not be granted." (Code Civ. Proc., § 473(b), emphasis added.) Based on the preceding, the Court is inclined to deny Respondent's order request, but as with the subject FOAH, will do so without prejudice to future modification proceedings. Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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Respondent's order request attaches a Points and Authorities, but there is no declaration signed by Respondent herself. Counsel's representations as to the alleged facts serving as the basis for relief are merely "argument," not "evidence" upon which the Court may rely. (See, Cal. Rules of Ct., rule 5.111(b)(2) ["A declaration must be based on personal knowledge and explain how the person has acquired that knowledge"], emphasis added.) Factual declarations are compulsory per the Rules of Court and per the "mandatory" nature of the Judicial Council FL-300 form required for all order requests. (Cal. Rules of Ct., rule 5.92(b)(1); Marriage of Bardzik (2008) 165 Cal.App.4th 1291, 1297, n. 3 [declarations are supposed to reflect statements of the declarant under oath, not legal argument by counsel]; Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026) Ch. 5-D, § 5:325-327 ["Evidentiary facts in support of each requested order must be included...The supporting declarations are for factual allegations"].) Absent such evidence, the Court is inclined to deny the request.

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permanent custody order at issue, and any analogy to default is misplaced since that would assume the subject FOAH was not founded on the minor child's best interests, but was instead based solely on Respondent's absence. No authority is offered that 473(b) relief obtains for temporary and pendente lite orders, and the prevailing view is to the contrary. (See, e.g., *In re Marriage of Capos* (2026) 120 Cal.App.5th 997, 1007 [distinguishing cases granting relief under Code Civ. Proc., §§ 473(b),(d), 580, where default or default judgments were at issue because the appellant's default had not been taken]; *Hogoboom & King*, supra, at § 5:300.8 ["[M]ore recent cases hold that the provision for mandatory relief does not apply absent an actual default, default judgment or dismissal. This is probably the better view..."].) Indeed, all child custody matters are inherently modifiable until the age of majority and because the Court expressly noted in the subject FOAH that it was "without prejudice" due to Respondent's non-appearance, set aside is arguably unnecessary for Respondent to seek modification. In terms of section 473(b) procedure, Respondent's order request did not include a copy of the "answer or other pleading proposed to be filed" (in this case a Responsive Declaration or FL-320), absent which "the application shall not be granted." (Code Civ. Proc., § 473(b), emphasis added.)

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